

IN THE DISTRICT COURT OF TRAVIS COUNTY, TEXAS
CAUSE NO. D-2025-00418

MERIDIAN LOGISTICS SOLUTIONS, LLC,
Plaintiff,

v.

CASCADE RETAIL GROUP, INC.,
Defendant.

PLAINTIFF'S ORIGINAL PETITION

TO THE HONORABLE PATRICIA M. ALVAREZ AND TO THE DEFENDANT CASCADE RETAIL GROUP, INC.:

Plaintiff Meridian Logistics Solutions, LLC ("Meridian"), by and through its authorized representative Victoria K. Hensley of Hensley & Associates, PLLC, brings this action against Defendant Cascade Retail Group, Inc. ("Cascade") and in support thereof would respectfully show the Court the following:

I. JURISDICTION AND VENUE

1. This Court has subject-matter jurisdiction over this dispute because the amount in controversy exceeds the jurisdictional minimum of this Court.
2. This Court has personal jurisdiction over Defendant because Defendant is a Texas corporation with its principal place of business in Austin, Texas, and the events giving rise to this dispute occurred in Travis County, Texas.
3. Venue is proper in Travis County, Texas, pursuant to Section 14.3 of the Master Services Agreement, which provides that any dispute arising under this Agreement shall be resolved in the state courts located in Travis County, Texas.

II. PARTIES

4. Plaintiff Meridian Logistics Solutions, LLC is a Texas limited liability company with its principal place of business at 2200 Commerce Street, Suite 1100, Dallas, Texas 75201. Meridian was formed in 2018 and provides logistics integration consulting services.

5. Defendant Cascade Retail Group, Inc. is a Texas corporation with its principal place of business at 400 Rainey Street, Austin, Texas 78701. Cascade was formed in 2015 and operates retail distribution centers throughout Texas.

III. FACTUAL ALLEGATIONS

6. On or about March 15, 2023, Meridian and Cascade entered into a Master Services Agreement (the "MSA"), effective April 1, 2023, pursuant to which Meridian agreed to provide logistics integration consulting services to Cascade.

7. On or about January 22, 2024, the parties entered into Amendment No. 1 to the MSA, which increased the hourly service rate from \$125.00 to \$145.00 per hour, effective January 22, 2024, and added a Service Level Addendum (Exhibit A).

8. Pursuant to the MSA as amended, Meridian provided logistics integration consulting services to Cascade during the third and fourth quarters of 2024.

9. Meridian issued Invoice No. 1042 in the amount of \$55,100.00 for services rendered during Q3 2024 (380.00 hours at \$145.00 per hour), dated October 15, 2024.

10. Meridian issued Invoice No. 1043 in the amount of \$48,140.00 for services rendered during Q3 2024 (332.00 hours at \$145.00 per hour), dated October 15, 2024.

11. Meridian issued Invoice No. 1044 in the amount of \$52,300.00 for services rendered during Q4 2024, dated January 10, 2025.

12. Meridian issued Invoice No. 1045 in the amount of \$49,800.00 for services rendered during Q4 2024, dated January 10, 2025.

13. Invoices Nos. 1044 and 1045, totaling \$102,100.00, remain unpaid despite Meridian's repeated demands for payment.

14. On or about January 28, 2025, Meridian sent Cascade a written Notice of Default and Demand for Payment covering Invoices Nos. 1044 and 1045.

15. Cascade has failed and refused to pay the outstanding balances on Invoices Nos. 1044 and 1045, totaling \$102,100.00, despite Meridian's satisfaction of all conditions precedent to payment under the MSA.

IV. HARM

16. As a direct and proximate result of Cascade's failure to pay the outstanding invoices, Meridian has been damaged in the amount of \$102,100.00, plus pre- and post-judgment interest and attorneys' fees.

V. PRAYER

17. Plaintiff prays that the Court deny Defendant's anticipated pleas and affirmative defenses, and that Plaintiff have and recover from Defendant the sum of \$102,100.00 in unpaid invoice balances, together with pre- and post-judgment interest as provided by law, reasonable and necessary attorneys' fees, and such other and further relief, at law or in equity, to which Plaintiff may be justly entitled.

Respectfully submitted,